

MASTER VEHICLE RENTAL AGREEMENT

Vehicle Rental Division

This Master Vehicle Rental Agreement ("Agreement") is entered into as of {{agreement_date}}, by and between {{owner_name}} ("Owner") and {{renter_full_name}} ("Renter").

1. Vehicle

Owner rents to Renter the following vehicle:

Year / Make / Model:

VIN:

License Plate:

The foregoing vehicle, together with all keys, accessories, equipment, and related items, is referred to herein as the "Vehicle."

Renter acknowledges and agrees that Owner retains sole legal and beneficial ownership of the Vehicle at all times. Nothing contained in this Agreement shall be construed as granting Renter any ownership interest, lien, security interest, equity interest, possessory interest beyond the limited rental rights expressly granted herein, or any other property right in the Vehicle. Renter's rights are strictly limited to temporary use of the Vehicle pursuant to the terms of this Agreement.

2. Rental Term

This Agreement shall commence on {{rental_start_date}}, 20__ and shall continue on a week-to-week basis unless terminated by either party. Either party may terminate this Agreement upon 48 hours written notice. Owner may immediately terminate this Agreement upon any default by Renter.

3. Rental Payments

Weekly Rental Payment:

Security Deposit:

Payment Due Day:

Owner may require payment by ACH, debit card, credit card, Zelle, Venmo, or any other approved payment method. Late payments are subject to a late fee of \$100 per day. If any payment remains unpaid for more than forty-eight (48) hours after its due date, Owner may terminate this Agreement and recover

possession of the Vehicle without further notice. Owner may require Renter to maintain a valid payment method on file at all times.

4. Permitted Use

The Vehicle may only be operated by Renter. Approved uses include:

- DoorDash
- Uber Eats
- Grubhub
- Instacart
- Spark (Walmart Delivery)
- Amazon Flex
- Roadie
- Shipt
- FedEx / UPS Contract Delivery
- Personal transportation
- Other delivery services approved in writing by Owner

The Vehicle shall NOT be used for:

- Operation by any unauthorized driver
- Rideshare passenger transportation (Uber, Lyft) without Owner's prior written consent
- Racing, reckless driving, towing, or off-road use
- Any illegal purpose
- Operation while under the influence of alcohol or drugs
- Travel outside the United States without Owner's written consent

5. Driver Eligibility

Renter represents and warrants that:

- Renter possesses a valid, unexpired driver's license
- Renter is legally authorized to operate a motor vehicle in Illinois
- Renter has disclosed all material driving violations within the previous five (5) years
- All information provided to Owner is true, complete, and not misleading

Any material misrepresentation shall constitute an immediate default and grounds for immediate repossession of the Vehicle.

6. Insurance

Owner may maintain insurance on the Vehicle. Regardless of any insurance coverage, Renter shall remain solely responsible for:

- Any applicable deductible
- Any uninsured or underinsured loss
- Any excluded claim or coverage gap
- Any damage caused by intentional misconduct, reckless conduct, unauthorized drivers, or prohibited use

Renter acknowledges that insurance coverage is subject to limitations, exclusions, and conditions. Nothing in this Agreement guarantees coverage for any specific loss. Renter is strongly encouraged to obtain personal non-owners auto insurance.

7. Vehicle Condition

Renter acknowledges receipt of the Vehicle in the condition described in the Vehicle Condition Report executed by the parties at the time of delivery. Renter shall return the Vehicle in substantially the same condition, ordinary wear and tear excepted. Any damage beyond ordinary wear and tear shall be governed by Section 9.

8. Maintenance and Care

Renter shall:

- Check and maintain fluid levels regularly
- Maintain proper tire pressure
- Promptly report any mechanical issues to Owner
- Immediately report any dashboard warning lights or safety concerns

Renter shall not authorize any repairs exceeding \$100 without Owner's prior written approval. Owner shall be responsible for ordinary scheduled maintenance unless damage was caused by Renter's misuse or negligence.

9. Accidents, Damage, Insurance Claims, and Financial Responsibility

Renter shall immediately notify Owner (within two (2) hours) of:

- Any accident, regardless of fault or severity
- Any theft or attempted theft of the Vehicle
- Any vandalism or property damage
- Any injury claim, demand, lawsuit, or legal proceeding
- Any police contact involving the Vehicle
- Any mechanical failure, warning light, or condition that could reasonably result in damage to the Vehicle

Renter shall fully cooperate with Owner, Owner's insurers, law enforcement, attorneys, investigators, claims administrators, and other representatives in connection with any incident involving the Vehicle and shall promptly provide any statements, photographs, videos, police reports, witness information, documentation, incident reports, recordings, correspondence, or other information reasonably requested by Owner.

Failure to timely report any incident or failure to fully cooperate with Owner shall constitute a material default under this Agreement.

Renter acknowledges that Owner is the titled owner of the Vehicle and shall have the sole and exclusive right, but not the obligation, to investigate, report, adjust, negotiate, settle, compromise, prosecute, defend, administer, and otherwise control any insurance claim, third-party claim, subrogation claim, property damage claim, bodily injury claim, or related proceeding arising from or relating to the Vehicle.

Renter shall not, without Owner's prior written consent, submit, initiate, negotiate, settle, compromise, withdraw, admit liability with respect to, make representations concerning, waive rights relating to, or otherwise participate in any insurance claim relating to the Vehicle, except to provide truthful factual information requested by an insurer, law enforcement agency, or Owner.

Any unauthorized attempt by Renter to submit, initiate, negotiate, settle, compromise, withdraw, interfere with, or otherwise participate in any insurance claim relating to the Vehicle shall constitute a material default under this Agreement and shall render Renter liable for any resulting loss, increased premium, deductible, administrative expense, claim handling expense, attorney's fee where permitted by law, collection cost, or other damage incurred by Owner arising from such conduct.

Renter shall be solely and absolutely responsible for any and all loss of, damage to, destruction of, impairment of, contamination of, diminution in value of, or adverse condition affecting the Vehicle occurring at any time during the rental period, regardless of fault, negligence, comparative fault, third-party fault, cause, circumstance, legal responsibility, or insurance coverage, including without limitation collision damage, theft, attempted theft, vandalism, weather-related damage, flood damage, hail damage, glass damage, tire and wheel damage, mechanical damage, drivetrain damage, suspension damage, interior damage, smoke damage, biohazard damage, cosmetic damage, total loss, partial loss, and diminished value.

Any insurance proceeds received by Owner shall be applied toward the applicable loss as determined by Owner. Receipt of insurance proceeds shall not release, reduce, impair, or satisfy Renter's obligations except to the extent Owner actually credits such proceeds against amounts owed.

Renter shall remain fully liable for all deductibles, uninsured losses, underinsured losses, excluded losses, depreciation, diminished value, loss-of-use damages, administrative expenses, claim handling expenses, towing charges, storage charges, impound fees, recovery costs, investigative costs, collection costs, attorney's fees where permitted by law, and all other damages, losses, costs, and expenses not fully reimbursed by insurance or a responsible third party.

Renter expressly authorizes Owner to apply all or any portion of the Security Deposit toward any obligation arising under this Section and further authorizes Owner to charge any debit card, credit card, ACH account, payment processor, electronic payment method, or other payment method previously authorized by Renter for any amount owed under this Agreement. Such remedies shall be cumulative and in addition to all other rights and remedies available to Owner at law, in equity, or under this Agreement.

The obligations contained in this Section shall survive expiration, termination, cancellation, surrender, repossession, return of the Vehicle, or expiration of the rental term and shall remain enforceable until all obligations owed to Owner have been fully satisfied.

10. Traffic Citations, Tolls, Impounds, and Fees

Renter shall be solely responsible for all:

- Parking tickets and violations
- Speed camera and red-light camera violations
- Toll violations and administrative fees
- Towing, storage, and impound charges

Owner may pay such amounts on Renter's behalf and seek immediate reimbursement. Renter authorizes Owner to provide Renter's identifying information to governmental agencies, toll authorities, collection agencies, and law enforcement as necessary. Unpaid fines or fees constitute a default under this Agreement.

11. GPS Tracking

Renter acknowledges and consents to the installation and ongoing use of GPS tracking technology within the Vehicle. Owner may use GPS data for vehicle recovery, theft prevention, operational monitoring, and compliance with this Agreement. Renter acknowledges that no expectation of privacy exists with respect to Vehicle location data. See the separate GPS Tracking & Privacy Disclosure for full details.

12. Default

The following shall each constitute an event of default under this Agreement:

- Failure to make any payment when due
- Use of the Vehicle by an unauthorized driver
- Providing false, misleading, or incomplete information on any application, form, or document
- Use of the Vehicle for any criminal, illegal, prohibited, or unauthorized purpose
- Failure to maintain a valid driver's license
- Failure to timely report any accident, theft, damage, claim, or other reportable incident involving the Vehicle
- Abandonment of the Vehicle
- Violation of any material provision of this Agreement

For purposes of this Agreement, "abandonment" includes, without limitation:

- Leaving the Vehicle unattended at any location for more than twenty-four (24) hours without Owner's prior consent
- Failure to disclose the Vehicle's location upon Owner's request
- Disabling, tampering with, removing, obstructing, or otherwise interfering with any GPS tracking device or fleet management equipment installed in the Vehicle
- Preventing, delaying, or interfering with Owner's ability to locate, monitor, recover, inspect, repossess, or otherwise regain possession of the Vehicle
- Failing to return the Vehicle immediately upon Owner's lawful demand following termination, expiration, or default

Upon default, Owner may immediately terminate this Agreement, accelerate any amounts due under this Agreement, suspend any extension rights, apply the Security Deposit, charge any authorized payment method, and recover possession of the Vehicle without further notice, in addition to exercising any other rights or remedies available at law, in equity, or under this Agreement.

13. Recovery of Vehicle

Upon termination or default, Renter shall immediately return the Vehicle to Owner. If Renter fails to do so within two (2) hours of notice, Owner may pursue all lawful remedies to recover possession, including engaging a repossession service. Renter shall be responsible for all costs of recovery including towing, storage, repossession fees, attorney fees where permitted by law, and collection costs.

14. Indemnification

Renter shall defend, indemnify, and hold harmless Owner and its members, managers, employees, agents, successors, and assigns from and against any and all claims, damages, liabilities, losses, costs, and expenses (including reasonable attorney fees) arising out of or relating to: (a) Renter's use or misuse of the Vehicle; (b) any accident or incident involving the Vehicle during the rental term; (c) any violation of this Agreement; or (d) any violation of law by Renter.

15. Limitation of Liability

Owner shall not be liable for any indirect, consequential, incidental, special, or punitive damages arising out of or relating to the Vehicle or this Agreement, regardless of the theory of liability.

16. Illinois-Specific Compliance

This Agreement is governed by the laws of the State of Illinois. The parties acknowledge the following Illinois-specific provisions:

- This Agreement is not a consumer installment sale or lease under the Illinois Consumer Installment Loan Act.
- GPS tracking of the Vehicle is permitted under Illinois law for fleet management and vehicle recovery purposes, consistent with 720 ILCS 5/14 and related statutes.
- Owner complies with applicable Illinois Vehicle Code requirements for vehicle registration and insurance.
- Any dispute regarding traffic citations or toll violations shall be governed by applicable Illinois administrative procedures.
- Security deposits are held pursuant to Illinois law and shall be returned or applied consistent with this Agreement and applicable law.

17. Arbitration

Any dispute arising out of or relating to this Agreement shall be resolved by binding arbitration administered in Cook County, Illinois under applicable arbitration rules. Judgment upon the award may be entered in any court of competent jurisdiction. Each party expressly waives any right to a jury trial.

18. Entire Agreement

This Agreement, together with the Vehicle Condition Report, Payment Authorization, Insurance Acknowledgment, GPS Tracking Disclosure, Accident Reporting Packet, and Traffic Ticket Assignment, constitutes the entire agreement between the parties with respect to the Vehicle and supersedes all prior negotiations, representations, and agreements.

19. Rental Extensions

Renter may request an extension of the rental term at any time prior to the scheduled Rental End Date. Extensions are subject to Vehicle availability and Owner approval. Upon approval, the parties shall execute a Rental Extension Addendum referencing this Agreement. The Addendum will specify the new end date and confirm that all terms of this Agreement remain in full effect. No new rental agreement or re-signing of the full document package is required for an extension.

Renter may extend on the following terms:

- Extensions are available in weekly increments at the current applicable weekly rate
- Renter must request an extension at least 24 hours before the current end date

- Owner reserves the right to decline an extension at Owner's sole discretion
- Continued possession of the Vehicle beyond the Rental End Date without an executed Extension Addendum constitutes a holdover and a default under this Agreement
- Owner may charge a holdover fee of \$100 per day for any unauthorized holdover period

20. Vehicle Return & Post-Rental Photo Documentation

Upon return of the Vehicle, Renter must complete the Vehicle Return Photo Form within two (2) hours of returning the Vehicle. The form requires Renter to:

- Upload timestamped photos of all four exterior sides, all four corners, the interior front and rear, trunk or cargo area, odometer, and fuel gauge
- Disclose any known damage incurred during the rental period
- Electronically certify that the photos accurately reflect the vehicle's condition at the time of return

Owner will send the Vehicle Return Photo Form link to Renter's email and phone number on file automatically upon the Rental End Date. If Renter extends the rental, the form delivery will be delayed to align with the updated end date.

Failure to complete and submit the Vehicle Return Photo Form within two (2) hours of the Vehicle's return shall result in a \$25.00 non-compliance fee automatically charged to Renter's payment method on file. This fee is in addition to any other amounts owed under this Agreement and does not limit Owner's right to assess damage charges based on Owner's own inspection.

In the absence of a completed post-rental photo submission, Owner's pre-rental condition report and Owner's post-return inspection shall constitute prima facie evidence of the Vehicle's condition at the time of return, and Renter waives any right to dispute damage findings based solely upon the absence of post-rental photographs.

21. Pre-Rental Condition Report

Prior to delivery of the Vehicle, Owner shall complete a Pre-Rental Vehicle Condition Form documenting the Vehicle's condition with timestamped photographs. Renter will receive the completed report as part of the e-sign document package and must review and sign it prior to taking possession of the Vehicle. Renter's signature on the Pre-Rental Condition Report constitutes acknowledgment that the Vehicle was received in the condition described therein.

22. Fees and Administrative Charges

Pursuant to this Agreement and the corresponding Payment Authorization & Security Deposit Form executed by Renter, Owner may, in Owner's sole and absolute discretion, assess, charge, debit, collect, deduct, or otherwise recover any of the following fees, charges, costs, expenses, damages, or amounts whenever Owner reasonably determines that such amounts are due, owing, or applicable. The following fees are cumulative and are in addition to any other rights, remedies, damages, losses, costs, expenses, or amounts recoverable by Owner under this Agreement, at law, or in equity:

- Late Payment Fee: \$25 per day
- Holdover Fee: \$100 per day
- Smoking Remediation Fee: \$250 minimum
- Excessive Cleaning Fee: \$100 minimum

- Pet Hair / Odor Remediation Fee: \$100 minimum
- Biohazard Cleaning Fee: Actual cost plus 25%
- Lost Key Fee: Actual replacement cost plus \$100 administrative fee
- Missing GPS Device Fee: Total replacement and installation costs, and a \$150 administrative fee
- Toll Processing Fee: \$10 per occurrence in addition to toll amounts
- Citation Processing Fee: \$50 per citation, plus reimbursement of the full amount of any citation
- Vehicle Recovery Fee: Actual cost incurred plus \$500
- Repossession Fee: Actual cost incurred plus \$500
- Returned Payment / ACH Rejection Fee: \$25 per occurrence
- Chargeback Administrative Fee: \$50 per occurrence
- Fraudulent Identification Fee: \$1,000, plus reimbursement of any investigation costs, losses, damages, insurance costs, attorney's fees where permitted by law, collection costs, and other expenses incurred by Owner arising from the submission of false, fraudulent, altered, forged, misleading, or stolen identification, driver's license information, residency documentation, or application materials.

Owner reserves the right to charge and recover the actual amount of any loss, damage, expense, fee, cost, liability, obligation, or other amount incurred by Owner that exceeds the amounts set forth above. The foregoing fees are minimum charges only and shall not limit Owner's recovery of its actual damages.

23. No Waiver

Owner's failure to enforce any provision of this Agreement on one or more occasions shall not constitute a waiver of Owner's right to enforce such provision or any other provision in the future.

24. Electronic Signatures

Electronic signatures, electronic records, electronic notices, and electronic communications shall have the same force and effect as original handwritten signatures and paper records.

(Signature Page to Follow)

310 W. 109TH STREET HOLDINGS LLC

RENTER

Signature:

Signature:

Print Name:

Print Name:

Date:

Date:
